

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 8, 2023. The complaint is directed against VOX ESPAÑA with Tax Identification Number G86867108 (hereinafter, the respondent), regarding the installation of a video surveillance system located at STREET ***ADDRESS.1, with indications of a possible violation of the provisions of Articles 5.1.c) and 13 of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that the respondent is responsible for a premises that has video surveillance cameras on its façade that are not properly signposted, lacking the mandatory informative signs of the monitored area with information about the data controller and the address to which requests regarding data protection should be directed, having only an alarm sign warning that the area is under video surveillance.

Images of the location of the cameras and the installed sign are provided.

The documents submitted are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 01/02/2023 as evidenced by the acknowledgment of receipt in the file. On 23/02/2023, the response to the forwarding was received.

On 05/04/23 and 13/04/2023, a request for correction was made, asking for clear photographs of the informative signs showing their content and images of the field of vision of the cameras to verify whether they capture public space proportionally or not. On 13/04/2023, the response to the request for correction was received.

In the response documents submitted by the respondent, information about the video surveillance system in question is provided. It is noted that the internal camera of the system is capturing public space disproportionately and that the sign provided, through which the obligation to inform is fulfilled, is not located at the accesses to the monitored areas as can be inferred from the images submitted.

THIRD: On April 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On August 28, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and the representative of the respondent submitted a written statement in which, in summary, stated that:

“VOX España requested the company PROSEGUR to correct the installation of new informative signs in accordance with the provisions of Article 12 of the GDPR and Article 22 of the LOPDGDD, and to be located at all accesses to monitored areas, whether interior or exterior. Likewise, it was requested to reduce the image capture perimeter to what is strictly necessary. All of this was communicated to the Data Protection Office of Prosegur, and the company has carried out the reduction of the recorded perimeter and has increased the number of signs to all monitored areas.

Despite the fact that VOX has requested Prosegur to restrict the surveillance perimeter to the minimum

criteria, and this has been done, it is necessary to inform this Spanish Agency for Data Protection that VOX's offices have been systematically attacked throughout Spain and that the criterion of proportionality regarding video surveillance could vary in relation to the safeguarding of other fundamental and preeminent rights, such as the vital interest of the data subject or the physical integrity of the workers at the offices of this party."

SIXTH: On February 22, 2024, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction the entity VOX ESPAÑA, with Tax Identification Number G86867108, for an infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €1,000 (one thousand euros).

SEVENTH: On February 25, 2024, the respondent submitted allegations to the resolution proposal in which, in summary, stated:

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"The VOX headquarters was closed on November 30, 2023. This headquarters is sealed and all contracts have been terminated, including those for security and video surveillance. There are no security cameras, nor is recording taking place since that date. The company addressed the issue of perimeter recording; nowadays, we cannot send such perimeter images because neither the images nor the video surveillance exist. The Spanish Agency tells us, after six months, that we have not provided the images when their own platform did not support the documents of recordings that we wanted to send in the first communication. Similarly, they intend to sanction this party, which has done everything within its power to comply with the regulation, even arguing in a report with doctrine from the agency itself regarding the proportionality of recordings prior to the rectification due to the security risk and vital interest of the workers, to which the AEPD pays no attention and, without any evidence, intends to sanction this party for facts that have been rectified and that have not existed for months. VOX Spain, in parallel, requested the company PROSEGUR to rectify the placement of new informational signs in accordance with the provisions of Article 12 of the GDPR and Article 22 of the LOPFGDD, and to be located at all access points to video-monitored areas, whether interior or exterior. Likewise, it was requested to reduce the image capture perimeter to what is strictly necessary. All of this was communicated to the PROSEGUR Office responsible for Data Protection, and the company has carried out the reduction of the recorded perimeter and has increased the number of signs in all monitored areas.

The principle of the presumption of innocence prevents attributing an administrative infraction when there has not been obtained and verified evidence of the facts that motivate the accusation or of the alleged infringer's involvement in them. Applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges, in any case, to resolve such doubt in the most favorable way for the interested party. The presumption of innocence must govern without exceptions in the sanctioning order and must be respected in the imposition of any sanctions, as the exercise of ius puniendi in its various manifestations is conditioned on the play of evidence and on a contradictory procedure in which the parties can defend their positions."

From the actions taken in the present procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The claimant states that the respondent is responsible for a premises that has surveillance cameras on its facade that are not properly signposted as they lack the required informational signs for the video-monitored area with information about the data controller and the address to direct requests regarding data protection, having only an alarm sign that warns that the area is under video surveillance.

It provides images of the location of the cameras and the installed sign.

SECOND: In the response documents submitted by the respondent, information about the video surveillance system subject to this complaint is provided.

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It is noted that the interior camera of the system is disproportionately capturing public space and that the sign provided, through which the obligation to inform is fulfilled, is not located at the entrances to the monitored areas as can be inferred from the images submitted.

THIRD: In the allegations to the Initiation Agreement, VOX states that it requested the company PROSEGUR to rectify the placement of new informative signs, ensuring they are located at all entrances to monitored areas, whether interior or exterior, as well as to reduce the image capture perimeter to what is strictly necessary. It refers that the company has carried out the reduction of the recorded perimeter and has increased the number of signs in all monitored areas. It provides images of the signs and press articles reporting attacks on ten VOX offices in Spain.

FOURTH: In the allegations to the Resolution Proposal, VOX reiterates what was stated in the Proven Fact Third, adding that this VOX office was closed on November 30, 2023, that it is shut down and there are no security cameras, nor is recording taking place since that date. The company rectified the issue of perimeter recording, but today they cannot send the perimeter images because they no longer exist.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to Allegations

In response to the allegations presented by the accused entity to the Initiation Agreement, the following should be noted:

Although the accused party states that it requested PROSEGUR to rectify the signs and reduce the space captured by its cameras, it does not indicate the date on which it did so, and in the images it provides with the allegations, only one of the signs is correct.

Regarding the proportionality of the space captured by the cameras, no images of the same are provided in the allegations, and the last images that are recorded as sent by the accused party to this Agency are from April 11, 2023.

These images are what led to the opening of the sanctioning procedure on August 28, 2023. And it is not the exterior cameras that excessively capture the public space (which have been masked), but an interior camera from which the entire sidewalk, parked cars, and the roadway can be seen.

In response to the allegations to the Resolution Proposal, the following should be indicated:

It has not been demonstrated by the accused party that, prior to the initiation of the sanctioning procedure, the interior camera located at the entrance and reception of the office, which excessively captured the public space, did not capture the entire sidewalk, parked cars, and the roadway, a photograph that has been provided by the accused party itself in April 2023.

In fact, it has been acknowledged in the allegations to the Initiation Agreement that PROSEGUR was requested to reduce the space captured by the cameras, and also to rectify the signs, which denotes

an acknowledgment of the commission of the infringement.

The fact that this VOX office is currently closed and shut down will determine that no corrective measures are imposed to ensure that the processing operations comply with the GDPR, but the infringements were indeed committed, which is why the corresponding sanctions are imposed.

Regarding the principle of presumption of innocence and the burden of proof regarding the facts that motivate the accusation, it should be noted that, in light of the documentation provided by the accused party itself on April 13, 2023, what has already been determined in the background and recorded in the proven facts is evident: "...that the interior camera of the system is disproportionately capturing public space and that the sign provided, through which the obligation to inform is fulfilled, is not located at the entrances to the monitored areas as can be inferred from the images submitted." As already indicated, this is evident in the photograph provided by the accused party titled "MAIN DOOR" which states "04-11-2023 Mar 13:00:01."

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Infringement

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Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, whether public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a publicly visible space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. If the monitored space has several access points, the distinguishing sign of the video surveillance area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The aim is to clarify the context of the surveillance.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it is directed at. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of that data.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Corps.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the area subject to installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

V

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

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1.- Natural or legal persons, whether public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The obligation to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled, in the terms already indicated.

4.- Images of public roads cannot be captured, as the processing of images in public places can only

be carried out by the Security Forces and Corps with prior governmental authorization.

In some cases, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security. That is to say, cameras and video cameras installed for security purposes may not capture images of public roads unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. In no case will the use of surveillance practices beyond the area subject to the installation be allowed, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

It is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

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5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The responsible party must maintain a record of activities of the treatments carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt the appropriate security measures.

8.- When a security breach occurs that affects the treatments of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the “Guides and tools” section).

It is also of interest, in cases of processing low-risk data, the free tool Facilita (in the “Guides and tools” section), which, through specific questions, allows the responsible party to assess their situation regarding the processing of personal data they carry out, and, where applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended

security measures.

VI

Administrative infringement

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In accordance with the proven facts established during the sanctioning procedure, it is considered that the facts presented violate the provisions of Articles 5.1.c) and 13 of the GDPR, thus constituting two infringements classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22; (...).”

For the purposes of the statute of limitations for infringements, the violations indicated in the previous paragraph are considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is provided in Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall be subject to a three-year statute of limitations, which constitute a substantial violation of the articles mentioned therein and, in particular, the following:

- a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.
- b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.
- (...)
- h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.”

VII

Sanction

Article 58.2 of the GDPR establishes:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

- d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe;

(...)

- i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided in Article 58.2.d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

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With respect to the infringements of Articles 5.1.c) and 13 of the GDPR, considering the proven facts, it is deemed that the sanction to be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

On its part, regarding letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.

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- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

The balance of the circumstances considered, regarding the infringements committed by violating the provisions of Articles 5.1 c) and 13 of the GDPR, allows for the imposition of a fine of €500 (five hundred euros), and another of €500 (five hundred euros), respectively.

VIII

Conclusion

According to the above, it has been established during this sanctioning procedure that the party being claimed excessively captured the public road and that the signage did not provide information to the interested parties in accordance with the terms of the GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on VOX ESPAÑA, with NIF G86867108:

For an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €500 (FIVE HUNDRED euros).

For an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €500 (FIVE HUNDRED euros).

SECOND: TO NOTIFY this resolution to VOX ESPAÑA.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the account

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restricted number IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection,

submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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